

Tentative Rulings for September 3, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Gina Machol at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302950	REAL ADVANTAGE TITLE INSURANCE COMPANY VS BARKER	MOTION FOR SUMMARY JUDGMENT

Tentative Ruling:

Moving party: Plaintiffs/Cross-Defendants Real Advantage Title Insurance Company and Orange Coast Title Company of Southern California
Represented by: Brower Law Group, APC

Responding party: Defendant/Cross-Complainant Janice Barker, Special Administrator of the Estate of Michael Barker, deceased
Represented by: Buchalter

In 2018, non-party BOBS LLC (“BOBS”) loaned \$27 million to Sunniva Production Campus, LLC (“Sunniva”), owned and/or controlled by Defendant Michael Barker (“Barker”) regarding a construction project in Cathedral City. Plaintiff Orange Coast Title Company of Southern California (“OCTCSC”) provided BOBS with escrow and title services and BOBS required title insurance through Plaintiff Real Advantage Title Insurance Company (“RATIC”) (collectively “Plaintiffs”). Barker executed an Indemnity Agreement both on behalf of Sunniva, and Barker individually (“2018 Indemnity Agreement”). In 2019, BOBS agreed to loan Sunniva an additional \$6 million, and Barker executed an additional indemnity agreement (“2019 Indemnity Agreement.”) Plaintiffs allege that in the two executed indemnity agreements (the “Indemnity Agreements”), Barker promised to prevent any mechanic’s liens from being recorded; clear and/or neutralize any mechanic’s liens that were recorded; and indemnify, defend, and hold Plaintiffs harmless from the effects of mechanic’s liens. But when mechanic’s liens were recorded against the Property, and Plaintiffs’ demanded for Barker’s performance, he refused to fulfill his contractual obligations.

On February 28, 2020, Orr Builders filed a mechanics’ lien foreclosure action. On July 27, 2020, Orr Builders named BOBS as a defendant. On September 1, 2020, BOBS foreclosed on the property and became its owner. In 2021, BOBS filed *BOBS LLC v. Orange County Title Insurance Company, et al.* (Case No. CVPS 2101103) (the “BOBS Case”) for closing escrow contrary to its escrow instructions, asserting causes of action for negligence, breach of fiduciary duty, and breach of the escrow agreement. On November 15, 2023 the jury returned a verdict in favor of Lender, finding OCTCSC and RATIC liable for breach of contract and negligence for closing escrow contrary to BOBS’ closing instructions. The trial in the BOBS Case was bifurcated, and Phase Two of the trial was on breach of fiduciary duty and damages. The parties entered into a Settlement Agreement whereby OCTCSC and RATIC agreed to pay BOBS \$10.5 million.

In the meantime, on June 20, 2023, Plaintiffs filed their complaint against Barker alleging a single cause of action for breach of contract – 2019 Indemnity Agreement.

Barker filed a cross-complaint against RATIC. On June 22, 2026, pursuant to stipulation and order, Barker filed the operative Second Amended Cross-Complaint (“SAXC”) alleging the

following causes of action: 1) breach of contract; 2) negligence; 3) breach of fiduciary duty; 4) rescission; and 5) declaratory relief.

Trial is set for October 2, 2026.

Plaintiffs now move for summary judgment on their breach-of-contract complaint under the 2019 Indemnity Agreement, or in the alternative for summary adjudication of six issues of duty: Barker's duties to (1) timely pay contractors to prevent mechanics' liens, (2) cause recorded liens to be released, (3) bond around any recorded liens, (4) deposit funds to protect Plaintiffs or their insureds, (5) cause the mechanics' lien foreclosure action to be defended by counsel protecting Plaintiffs and their insured, and (6) protect and indemnify Plaintiffs from liabilities arising from the mechanics' liens at issue in the ML Foreclosure Action and the BOBS Lawsuit. Plaintiffs also seek summary judgment on Barker's cross-complaint on the grounds that some or all cross-claims are barred by the statute of limitations, that Barker was not a party to any escrow agreement, that Barker ratified any conduct of which he complains, and that no alleged breach proximately caused his damages. The motion contends the Agreement is unambiguous, that Barker's breach is undisputed, and that Plaintiffs' damages flow directly from those breaches.

Barker opposes the motion and argues it raises the same factual disputes the court previously found triable when it denied Barker's own MSJ on February 10, 2026, and that Plaintiffs' motion characterizes the Indemnity as a "guaranty" to pay mechanics' liens regardless of whether RATIC ever faced potential liability under the title policy it issued, a reading Barker contends is superficial, internally inconsistent, contrary to controlling California indemnity law, and absurd. Substantively, Barker contends the Indemnity does not cover Plaintiffs' own active fault under *Crawford/Rossmoor* principles, that the BOBS jury found Plaintiffs liable for their own escrow negligence and failure to issue the coverage the lender demanded (not for breaching the policy), and that Barker acted only as escrow depositor whose Indemnity was never properly delivered because OCTCSC closed despite conflicting lender/borrower instructions. Barker asserts triable issues on voidness/lack of delivery, waiver, ratification, proximate causation, and the statute of limitations; asserts affirmative cross-claims for negligence, breach of fiduciary duty, and breach of implied contract based on his depositor status and the *Biakanja* factors; and urges denial of summary adjudication for failure to comply with California Rules of Court, rule 3.1350(b) and (d).

Plaintiffs reply that the Agreement's meaning is a pure question of law and that paragraphs 5–7 mean what they say, Barker promised to pay contractors, pay or bond mechanics' liens, and defend actions relating to them, such that Barker's conditioning reading would rewrite the contract and render paragraphs 5–7 mere surplusage duplicative of paragraph 9. Plaintiffs further contend Barker's extrinsic and expert evidence is inadmissible, his affirmative defenses lack merit, and his cross-complaint is untimely and substantively deficient because Plaintiffs owed him no independent duty.

Analysis

I. Standard

A motion for summary judgment shall be granted when no triable issue of material fact exists or the issue is one of law and the action can be terminated in favor of the moving party without the necessity of trial. (C.C.P., § 437c; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Where plaintiff (or cross-complainant) seeks summary judgment, the burden is to

produce admissible evidence on each element of a “cause of action” entitling plaintiff to judgment. (C.C.P., § 437c(p)(1); see *Hunter v. Pacific Mechanical Corp.* (1995) 37 Cal.App.4th 1282, 1287, (citing text) (disapproved on other grounds by *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388.) A defendant (or cross-defendant) has met his or her burden under C.C.P., § 437c(p)(2) of showing a cause of action has no merit if that party has shown that one or more of the elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. Once that burden has been met, the burden shifts to the opposing party to produce admissible evidence showing a triable issue of material fact exists. (C.C.P., § 437c(p)(2); *Arcienaga v. Bank of San Bernardino* (1997) 52 Cal.App.4th 213, 231.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

Code of Civil Procedure section 437c(f)(1) permits the court to grant summary adjudication as to one or more causes of action, affirmative defenses, claims for damages, or issues of duty if that cause of action, defense, or issue has no merit or cannot be maintained as a matter of law. The same burden-shifting framework and record-construction rules that govern summary judgment apply with equal force to summary adjudication: the moving party must first produce evidence sufficient to negate an essential element or establish a complete defense as to the targeted claim or issue, whereupon the burden shifts to the opposing party to raise a triable issue of material fact on that discrete claim or issue.

II. Merits

A. Summary Judgment on the Complaint (Breach of the 2019 Indemnity Agreement)

The motion is DENIED. Plaintiffs have not shown that the Agreement unambiguously imposes independent contractual duties on Barker, that paragraph 9 covers the indemnitees’ own active negligence, that causation of the \$10.5 million settlement is established as a matter of law, or that the pleaded affirmative defenses are negated.

At the outset, the Court notes that on February 10, 2026, it denied Barker’s own motion for summary judgment on the same 2019 Indemnity Agreement, finding that the parties’ separate statements revealed multiple material disputes precluding judgment, including the intended scope of the indemnity, whether Plaintiffs’ liability arose out of mechanics’ liens, the basis for the \$10.5 million settlement, and the nature of the lender’s claims. The scope and causation disputes that precluded judgment for Barker equally preclude judgment for Plaintiffs on this mirror-image motion.

1. *Ambiguity*

Contract interpretation is a question of law when the writing is unambiguous, and the language governs if it is clear, explicit, and not absurd. (Civ. Code § 1638.) The parties’ intent is ascertained from the writing alone if possible, (Civ. Code § 1639) and the whole contract must be read together to give effect to every part, with clauses interpreting one another and repugnancies reconciled subject to the general intent. (Civ. Code §§ 1641, 1652.) Unresolved uncertainty is construed against the drafter. (Civ. Code §§ 1641, 1654.) Where an indemnity is reasonably susceptible to more than one meaning, extrinsic evidence is admissible to resolve the ambiguity. (*Rideau v. Stewart Title of California* (2015) 235 Cal.App.4th 1286.) The threshold question is

whether the Agreement unambiguously imposes independent duties on Barker to pay contractors, release liens, post bonds, deposit funds, defend actions, and indemnify Plaintiffs for mechanics' lien losses. Read as a whole, the Agreement is reasonably susceptible to more than one interpretation.

The Agreement recites Barker's desire that RATIC issue title policies insuring the property as free of mechanics' liens and insuring RATIC's insureds against such loss (UMF No. 11). Consideration is expressed as "RATIC's ISSUANCE of each policy of title insurance RATIC shall decide to issue, insurance against loss by reason of construction/mechanics' liens or the possibility that such liens affecting the Property may be recorded." (UMF No. 11.) Paragraph 7(b) limits the defense obligation to counsel who will protect RATIC and any insured "to which RATIC may have possible liability as a result of issuance of a policy or policies of title insurance pursuant to this Agreement." (UMF No. 32.) Paragraph 12 permits return of security when RATIC can have "no further construction/mechanics' lien liability under its policy or policies." Paragraph 15 states that RATIC was undertaking a risk significantly greater than in the normal course of title insurance by entering into the Agreement and issuing policies in reliance on it (UMF No. 12).

These provisions reasonably support Barker's reading that the Agreement was designed to protect against title-policy exposure arising from mechanics'-lien risk, not to create a freestanding guaranty of every downstream loss. Plaintiffs' strongest argument is that separate obligations to pay contractors (UMF No. 13), release liens (UMF No. 15), bond liens (UMF No. 28), deposit funds (UMF No. 30), and defend actions (UMF No. 32) would be surplusage if the Agreement merely restated a right to be indemnified for covered title-policy losses. That argument has force, but paragraphs 5 and 6 do real work if read as preventive and mitigative mechanisms directed at RATIC's title-insurance exposure. The whole-contract canon requires harmonization. (Civ. Code §§ 1641, 1652.) Because both readings are textually plausible, the Agreement is ambiguous on whether the enumerated duties exist independent of title-policy exposure, with the ambiguity strongest as to duty 5 given paragraph 7(b)'s express "possible policy liability" language. Because the Agreement was drafted on a form supplied by RATIC to Barker, unresolved ambiguity is construed against RATIC under Civil Code section 1654. That canon independently bars summary judgment on any duty whose scope depends on the disputed conditioning question.

2. *Paragraph 9 and own-negligence indemnity*

An indemnity does not reach the indemnitee's own active negligence absent express and unequivocal language, and recovery under a contractual indemnity is limited to loss causally attributable to the indemnified risk. (*Common Wealth Ins. Sys., Inc. v. Kersten* (1974) 40 Cal.App.3d 1014, 1018; *Edmondson Prop. Mgmt. v. Kwock* (2007) 156 Cal.App.4th 197, 202; *Oltmans Constr. Co. v. Bayside Interiors, Inc.* (2017) 10 Cal.App.5th 355, 358.)

As the Court recognized in denying Barker's motion, indemnity provisions covering liabilities "arising out of" a specified condition may apply even where the indemnitee is partially negligent. Broad arising out of language can, in appropriate circumstances, reach losses to which the indemnitee's negligence contributed. (*Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, ; and *Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628, 633.) Paragraph 9's "under any theory of recovery as a result of the existence of a claim of right to a construction/mechanics' lien" language (UMF No. 36) is that kind of broad arising-out-of clause. Even so, breadth alone does not establish, as a matter of law, that paragraph 9 covers OCTCSC's independent escrow negligence, its failure to read the lender's final closing instructions, its failure

to issue the coverage the lender required, and its decision to close despite the material conflict between lender and borrower instructions. Paragraph 9 lacks that express language directed to the indemnitees' own active fault, and on this record it does not establish coverage of the indemnitees' escrow-closing misconduct as a matter of law.

3. *Causation and damages*

The BOBS jury found OCTCSC and RATIC liable for breach of contract and negligence for closing escrow contrary to BOBS's closing instructions. (Compl. ¶ 28.) The declaratory-relief cause of action tied to the policy had already been dismissed before the December 6, 2022 tender. On this record, the settlement is not established as an undisputed matter to have been attributable to the mechanics' lien risk Barker agreed to bear rather than to independent escrow-closing conduct. (*Oltmans Constr. Co. v. Bayside Interiors, Inc.* (2017) 10 Cal.App.5th 355, 358.)

4. *Affirmative defenses*

Barker pleads voidness/lack of delivery, waiver, and ratification. A moving plaintiff must negate every pleaded affirmative defense. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826.) Ratification requires full knowledge of the material facts constituting the unauthorized conduct; acceptance of benefits without such knowledge does not establish ratification as a matter of law. (*Stalberg v. W. Title Ins.* (1991) 230 Cal.App.3d 1223, 1225; *Common Wealth Ins. Sys., Inc. v. Kersten* (1974) 40 Cal.App.3d 1014, 1021.) An agent's knowledge is imputed to the principal only when acquired within the scope of the agent's authority, and scope questions can present triable factual issues. (*Bergstrom v. Zions Bancorporation, N.A.* (2022) 78 Cal.App.5th 387; *Triple a Mgmt. Co. v. Frisone* (1999) 69 Cal.App.4th 520, 525. Barker's evidence that OCTCSC closed despite materially conflicting instructions creates a triable dispute over authorized delivery. Barker's asserted lack of knowledge of the instruction conflict until December 2022 is disputed on this record and precludes ratification as a matter of law. The Agreement's waiver clause helps Plaintiffs but does not, standing alone, negate every waiver or ratification theory tied to the escrow-closing circumstances.

B. Summary Adjudication of Issues on Complaint

The notice of the alternative motion for summary adjudication lists out six issues of duty on the complaint under Code of Civil Procedure section 437c(f)(1), as follows: (1) make timely payment to the contractors to prevent any mechanic's liens from being recorded in the first instance; (2) cause a release of the mechanic's liens to be filed of record in the county Recorder's office; (3) cause to be recorded with respect to any mechanic's liens a bond or bonds freeing the Property from the effect of the mechanic's liens; (4) deposit with Plaintiffs an amount to protect Plaintiffs or the insureds against mechanic's liens; (5) cause the Mechanic's Liens (ML) Foreclosure Action to be defended in a timely manner by counsel who would protect Plaintiffs and their insured from possible liability as a result of the issuance of the Title Policy; (6) protect and indemnify Plaintiffs from and against any and all liabilities or claims of liability, losses, costs, charges, expenses, and damages of any kind or character whatsoever, including reasonable attorneys' fees incurred or sustained by Plaintiffs, by reason of or arising out of the mechanics' lien(s) at issue in the ML Foreclosure Action, or by reason of or arising out of the mechanic's lien(s) at issue in the BOBS Lawsuit." (Ntc. of Mtn., 2-3.)

First, California Rules of Court, rule 3.1350(b) requires that where summary adjudication is sought, “the specific . . . issues of duty . . . must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts,” and Rule 3.1350(d) and (h) require that the separate statement separately identify each issue of duty and organize the supporting material facts under that issue. Plaintiffs’ Separate Statement presents 60 undifferentiated undisputed material facts covering background, contract provisions, liens, litigation, and agency, without repeating the six listed duty formulations verbatim and without separate subsections corresponding to duties. Denial on that ground is discretionary. (*Truong v. Glasser* (2009) 181 Cal.App.4th 102, 118.)

Notwithstanding, the Court elects to reach the merits and treats the rule 3.1350 defect as a supplemental, not sole, ground for denial of the alternative motion, a discussion of the merits follows below:

Duties 1 through 4 are proper issue-of-duty subjects in the abstract, each asking whether the contract imposed a discrete act-based obligation, timely payment (UMF No. 13), release (UMF No. 15), bond (UMF No. 28), or deposit (UMF No. 30). Duty 5 asks whether the Agreement imposed a defense duty (UMF No. 32). Plaintiffs have not shown unambiguously that any of those duties existed as freestanding obligations independent of title-policy exposure. (See § II.A.1.) The ambiguity is strongest as to duty 5, whose noticed formulation refers to defense of “Plaintiffs and their insured” but omits paragraph 7(b)’s critical limitation to insureds “to which RATIC may have possible liability as a result of issuance of a policy or policies of title insurance.” (UMF No. 32.) The Agreement does not unambiguously impose the defense duty as broadly as noticed.

As stated above, duty 6 asks the Court to declare an obligation to “protect and indemnify Plaintiffs from and against any and all liabilities or claims of liability, losses, costs, charges, expenses, and damages of any kind or character whatsoever, including reasonable attorneys’ fees incurred or sustained by Plaintiffs” That formulation moves beyond existence and scope of duty and toward whether specific categories of loss in identified litigations are covered, incurred, and recoverable, implicating breach, causation, and damages. C.C.P., § 437c(f)(1) does not authorize adjudication of an issue of duty in that form. Duty 6 also references “Plaintiffs” while paragraph 9 protects “RATIC” as defined, and the Agreement originally defined “RATIC” to include Orange Coast Title Company, which later assigned its interest to OCTCSC during litigation (UMF No. 40) an assignment whose legal effect on OCTCSC’s asserted rights is not developed in the motion. Finally, duty 6 is overbroad to the extent it seeks a ruling covering losses arising from OCTCSC’s own conduct, given paragraph 9’s lack of express own-negligence language. (See § II.A.2.)

In sum, the Court denies the alternative request for adjudication of various issues of “duty” as to the complaint.

C. Cross-Complaint

As moving cross-defendants, each plaintiff must show that one or more elements of the cross-claim cannot be established or that a complete defense exists. (C.C.P., § 437c; *Aguilar v. Atlantic Richfield Co.* (2001), 25 Cal.4th 826.)

1. *Notice*

The notice of motion seeks summary judgment as to Barker's cross-complaint and each cause of action in the cross-complaint. (See Ntc. of Mtn., 3:5-10 ["RATIC and OCTC-SC as Cross-Defendants are entitled to summary judgment on Barker's Cross-Complaint on the grounds that the undisputed facts show that some or all of Barker's claims are barred by the statute of limitations; that Barker's contract claims fail because he cannot prove that Barker was a party to any escrow agreement with Cross-Defendants; that Barker ratified any alleged actions of which he complains; and that Cross-Defendant's alleged breaches were not the proximate cause of any damages that Barker incurred.") It does not, in the alternative or otherwise, seek summary adjudication of any individual cross-claim under Code of Civil Procedure section 437c(f)(1). The alternative summary-adjudication request is expressly confined to the six noticed issues of duty on the complaint (see § II.B); it is not extended to the cross-claims, and the Separate Statement is not organized under issue headings identifying each cross-claim as required by California Rule of Court 3.1350(b), (d), and (h) for adjudication of causes of action. Therefore, the Court treats this as a motion for summary judgment on the cross-complaint as a whole. Because Plaintiffs have not shown entitlement to judgment on every cross-claim, the motion fails, and the Court does not need to adjudicate individual cross-claims that were not properly noticed.

2. *Negligence and breach of fiduciary duty*

Briefly, negligence and breach of fiduciary duty each require duty, breach, causation, and damages. (*Markowitz v. Fidelity Nat'l Title Co.* (2006) 142 Cal.App.4th 508.) As to an escrow holder, fiduciary obligations are limited to faithful compliance with the escrow instructions of the parties to the escrow; where a claimant is not a party to those instructions, duty to the nonparty is analyzed under the *Biakanja* factors. (*Summit Fin. Holdings, Ltd. v. Continental Lawyers Title Co.*, 27 Cal. 4th 705, 715.) An escrow transaction under Financial Code section 17003(a) requires delivery of an instrument to a third person to hold pending a specified event and the person making such a delivery is a depositor protected under Civil Code section 1814. An escrow holder that accepts a deposit of an instrument into escrow and undertakes performance incurs an implied contractual obligation to perform accordingly. (*Bruckman v. Parliament Escrow Corp.* (1987) 190 Cal.App.3d 1051.) A title insurer's obligations, by contrast, are narrower than an escrow holder's, and a person who is not the named insured cannot rely on the insurer as though it were protecting that person's interests. (*Vournas v. Fidelity Nat'l Title Ins.* (1999) 73 Cal.App.4th 668, 670.) Causation is not severed by a subsequent act unless both the act and the resulting harm were unforeseeable. (*Id.*) Neither Plaintiff has carried its burden on this record.

As to RATIC The general rule that a title insurer owes no independent negligence or fiduciary duty to a noninsured indemnitor has force. (*Vournas v. Fidelity Nat'l Title Ins.* (1999) 73 Cal.App.4th 668, 670; *Markowitz v. Fidelity Nat'l Title Co.* (2006) 142 Cal. App. 4th 508.) But the Agreement originally defined "RATIC" to include Real Advantage and Orange Coast Title Company collectively, with benefits inuring to Orange Coast Title Company's assignees, including OCTC-SC (UMF Nos. 11, 40), and RATIC actively demanded and received the Indemnity as a condition of issuing the policy and of the 2019 endorsement (UMF Nos. 8, 11); movants' opening papers address only the general no-duty rule and do not negate the alternative duty theories Barker has advanced. **The Court denies the motion.**

As to OCTCSC, Barker was not a party to the escrow agreement (UMF No. 3), which supports the prima facie no-duty position under *Summit* and *Markowitz*. But the record also shows the lender's closing instructions identified a "Personal Guaranty (Michael Barker)" among documents deposited or to be deposited with OCTC-SC, and Barker's theory rests on his personal

execution and delivery of indemnity instruments demanded as a condition of issuing the policy. Financial Code section 17003(a) and Civil Code sections 1814 and 1835 may define a depositor relationship where Barker personally delivered an instrument to be held pending policy issuance or closing conditions. OCTCSC has not shown as a matter of law that the indemnity fell wholly outside the operative escrow transaction or that Barker remained a stranger to it. **The Court denies the motion.**

Even treating Barker as a nonparty, the *Biakanja* analysis is not conclusively resolved in OCTCSC's favor. (*Summit Fin. Holdings, Ltd. v. Continental Lawyers Title Co.*, 27 Cal. 4th 705, 715.) The transaction was structured around issuance of lender coverage against mechanics' lien risk; Barker personally signed indemnities to induce that issuance; the instructions themselves referenced his guaranty; and his claimed injury is exposure under the very indemnity delivered in connection with the challenged closing. Foreseeability and intended effect cannot be negated as a matter of law on this record.

Movants rely on Barker's receipt of loan benefits and Amanda LaValle's receipt of the final closing instructions before escrow closed (UMF Nos. 54, 57). Ratification requires full knowledge of the material facts (*Stalberg v. W. Title Ins.* (1991) 230 Cal.App.3d 1223, 1225) and imputation of an agent's knowledge depends on scope of authority, a question that may be triable. (*Bergstrom v. Zions Bancorporation, N.A.* (2022) 78 Cal.App.5th 387; *Triple a Mgmt. Co. v. Frisone* (1999) 69 Cal.App.4th 520, 525.). Barker's asserted first knowledge of the instruction conflict in December 2022 is disputed. On causation, if Barker's later exposure was a foreseeable consequence of a closing that allegedly preserved uncovered mechanics' lien risk while binding him under the indemnity, superseding cause is not established as a matter of law. (*Vournas v. Fidelity Nat'l Title Ins.* (1999) 73 Cal.App.4th 668, 670.)

A breach of implied-in-fact contract claim requires the same elements as breach of express contract, with assent inferred from conduct. (*Aton Ctr., Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1230.) Plaintiffs have not carried their initial burden to negate breach and damages on Barker's theory that OCTCSC's acceptance of his deposited indemnities and undertaking of escrow performance gave rise to implied contractual obligations. (*Bruckman v. Parliament Escrow Corp.* (1987) 190 Cal.App.3d 1051; *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826.)

Declaratory relief is cumulative, and overlap with other causes of action does not by itself defeat the claim where an independent prospective controversy remains. (*Tribeca Cos., LLC v. First Am. Title Ins.* (1975) 239 Cal.App.4th 1088.) The parties maintain an active, ongoing dispute over their rights and obligations under the indemnity agreements, which is sufficient at this stage.

Because at least the foregoing cross-claims present triable issues, Plaintiffs have not shown entitlement to judgment on the cross-complaint as a whole. Summary judgment on the Second Amended Cross-Complaint should be denied and the Court declines to reach whether any individual cross-claim would be susceptible to summary adjudication on a properly noticed motion, because such a motion is not before the Court on the present notice.

Deny the motion in its entirety.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2501815	BATES VS LINTON	DEMURRER

Tentative Ruling:

Moving party: Defendant George Linton, Jr.
Responding party: Plaintiff Kimberly Bates, in pro per

This is a real property dispute filed by Kimberly Bates, acting in pro per, on 4/17/25 alleging 4 causes of action for 1) constructive trust, 2) quid pro quo sexual harassment and coercion, 3) IIED and 4) equitable and injunctive relief. On July 23, 2025, Defendant Linton filed a demurrer to the Complaint. Thereafter, as a matter of right Bates filed a First Amended Complaint realleging the same causes of action and adding a real property claim. On November 21, 2025, Linton demurred to the FAC, which Bates failed to oppose. On February 2, 2026, the court sustained with leave to amend. The Court notes that the minute order is contradictory in that it states “sustained without leave to amend” but then reads “Leave to amend 1st Amended Complaint ... grant” butth 21 ds to [sic] leave to amend.

Bates filed a Second Amended Complaint, in pro per, on February 23, 2026, alleging 4 causes of action for 1) quiet title, 2) constructive trust, 3) declaratory relief, and 4) injunctive relief. Defendant demurred to the SAC. There is a later case filed by Plaintiff Bates against Defendant Linton (CVRI2501942) that had a demurrer on calendar the same day as the demurrer to the SAC in this case

On May 12, 2026, the court sustained the demurrer to the 1st – 4th causes of action with leave to amend. In addition, the court ordered CVRI2501942 consolidated with CVRI2501815, with CVRI2501815 being designated the master file. On June 1, 2026, Bates filed her Third Amended Complaint alleging 5 causes of action for 1) quiet title, 2) constructive trust, 3) promissory estoppel, 4) declaratory relief, and 5) injunctive relief.

Defendant now demurs to all five causes of action on the grounds that they are uncertain and fail to state facts sufficient to constitute a cause of action against him. Plaintiff’s Third Amended Complaint continues to fail to assert any viable cause of action as to the real property at issue and continues to be fatally defective. As Plaintiff has been provided multiple attempts at pleading and continues to be unable to do so, Defendant respectfully requests the Court sustain this demurrer, without leave to amend.

In opposition, Plaintiff Bates asserts the demurrer should be overruled as the TAC is not a bare pleading based on an unsupported oral promise as it is supported by attached documents, and Defendant’s memorandum acknowledges that the TAC contains more factual allegations than the prior versions and identify the very transaction documents and communication on which Plaintiff relies. Therefore, the demurrer confirms that Defendant has notice of the factual theory and the evidence pleaded with it. Further, Plaintiff asserts that the TAC expressly identifies a written instrument executed by Defendant on November 14, 2023, that directs distribution of the Property to Plaintiff by name. Whether Defendant ultimately prevails on the legal effect of that instrument, the alleged agreement, or the asserted equitable interests is not the issue on demurrer.

In reply, Defendant Linton asserts there simply are no factual allegations in the Third Amended Complaint establishing an ownership interest in Defendant's property in Plaintiff's favor under any theory. As a threshold issue, Plaintiff has produced no agreement in writing, signed by Defendant/the party to be charged, conferring a present ownership interest to Plaintiff. Absent this fundamental fact, Plaintiff cannot establish an ownership interest upon which to anchor the causes of action alleged. Contrary to Plaintiff's assertions, the Statute of Frauds is applicable and is not satisfied by a factual showing in the Third Amended Complaint – and cannot be satisfied because such a writing does not exist. Plaintiff points to the November 14, 2023 amendment to the Linton Family Trust as a “writing” demonstrating her ownership interest, which states in Paragraph 6.F(2) that upon Defendant's death, “Trustee shall distribute the real property located at 1762 Park Place Lane, Riverside, California, to KIMBERLY L. BATES...” On its face the document is a revocable trust, and Defendant Linton is named as the Trustee. As the Trustee, Defendant has the power to revoke or amend the revocable Trust - including the power to change the distribution of the subject property. By the causes of action in the Third Amended Complaint, Plaintiff seeks to essentially render the revocable trust “irrevocable” by alleging that she possesses a present ownership interest in the property and therefore prohibiting Defendant from exercising his right as the Trustee to transfer or sell the subject property. Lastly, Linton asserts that Bates' status as a pro per litigant cannot be the basis for liberal treatment in evaluating the sufficiency of the pleading.

The Pleading:

The TAC alleges that the property at issue was acquired by Linton as a gift for Bates, which promises Bates relied on to her detriment. The entire loan and escrow transactions were handled by Bates, with the exception of the loan signing where she was not present due to a work obligation. Linton repeatedly confirmed in writing, and orally, to Bates and others that the property was to be Plaintiff's home. The loan team confirmed in writing that she would be placed on the deed. However, Linton chose not to place Bates' name on the deed and never disclosed this to her.

The parties dated for a period of time. When Bates refused to engage in premarital sex or physical contact with him, he threatened her with court proceedings and eviction conditioning her continued occupancy and ownership on sexual compliance, which had never been a condition of receiving the home. Linton subsequently executed a notarized amendment to his trust directing that the property be distributed to her upon his death. Linton mailed her a copy along with a copy of the grant deed conveying the house to his revocable trust.

Bates seeks to have her equitable ownership in the property recognized to prevent Linton from permanently extinguishing that interest.

At the time of Linton's promise, Bates had secured an alternative investor who was prepared to acquire a home for her. In reliance on Linton's promise, Bates declined to pursue that alternative and instead relied on Linton's representations, which permanently foreclosed another path to homeownership. In addition, in reliance Bates gave up her apartment lease, moved her household into Linton's residence for three months, then again into the property at issue. Bates lost over two years of housing stability and was ultimately wrongfully evicted from the property when she refused to enter into a romantic relationship with Linton.

On or about May 18, 2023, Plaintiff executed a gift letter in connection with the Property transaction at the direction of the loan officer. The gift letter, prepared by the loan team, identified Plaintiff as a domestic partner and documented Plaintiff's financial contribution of \$1,426 to the

transaction. The loan officer advised Plaintiff to sign the gift letter to establish her interest in the Property. This executed document constitutes written evidence of Plaintiff's financial participation in and acknowledged interest in the acquisition of the Property.

Defendant has been unjustly enriched by Plaintiff's reliance and contributions. Defendant acquired property with Plaintiff's active participation, labor, financial contribution, and full coordination of the transaction over more than one year.

In summary, the TAC alleges that Linton promised to buy her the home (which promise is documented in writing), but then ultimately at the loan closing failed to ensure that the deed was in her name. To correct this, Linton put directions in his revocable trust that the property should go to Bates upon his death. Despite Linton's promises, in January 2024 he began eviction proceedings because Bates refused to have a physical relationship with him. On November 4, 2025, Bates moved out under duress, but has not been compensated for the loss of the property promised to her or for the housing instability caused by the eviction proceedings.

Analysis

To withstand a demurrer the complaint must contain "a statement of the facts constituting the cause of action, in ordinary and concise language." (C.C.P. § 425.10.) "[T]he complaint need only allege facts sufficient to state a cause of action, each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.) Generally, a plaintiff need only plead facts necessary "to acquaint a defendant with the nature, source and extent of his claims." (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court's task is to treat well-pleaded allegations in the complaint as true and determine whether the complaint states facts sufficient to constitute a cause of action. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "The hearing on demurrer may not be turned into a contested evidentiary hearing through the guise of having the court take judicial notice of affidavits, declarations, depositions, and other such material which was filed on behalf of the adverse party and which purports to contradict the allegations and contentions of the plaintiff." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 605; *Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may take into account only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there

is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) The TAC is not uncertain.

1st Cause of Action for Quiet Title: To state a cause of action to quiet title the complaint must include the following 1) description of property, 2) basis of plaintiff's title, 3) the adverse claims to the title against which a determination is sought, 4) date of which the determination is sought, and 5) prayer for determination of the title of the plaintiff against the adverse claims. (C.C.P. §760.020(a).)

The TAC fails to set forth facts sufficient to state a cause of action for quiet title. Furthermore, the TAC fails to assert any facts upon which a quiet action could be sufficiently pled. The TAC, like the pleadings before it, clearly indicate that Linton promised to gift her the property, but failed to do so. Further, any agreement to convey real property must comply with the statute of frauds. (Civ. Code § 1624(a)(3); *Secrest v. Security Nat'l Mortgage Loan Trust 2002* (2008) 167 Cal.App.4th 544, 552–553.) Here, the TAC does not plead facts that comply with the statute of frauds. While Linton conveyed the property to his trust, then added her as a beneficiary to his revocable trust (indicating she would get the property upon her death), that was a designation he was free to change. It was not a conveyance of the property to Bates as she asserts. That is not a basis for Plaintiff's title. **Accordingly, the court sustains the demurrer without leave to amend.**

2nd Cause of Action for Constructive Trust: “One who wrongfully detains a thing is an involuntary trustee thereof, for the benefit of the owner.” (Civil Code §2223.) A “constructive trust may be imposed in practically any case where there is wrongful acquisition or detention of property to which another is entitled. (*Martin v. Kehl* (1983) 145 Cal.App.3d 228.)

The TAC fails to set forth facts sufficient to state a cause of action for constructive trust. **Accordingly, the court sustains the demurrer without leave to amend.**

3rd Cause of Action for Promissory Estoppel: The purpose of the promissory estoppel doctrine is to bind a promisor to a promise made, without consideration, where there is justifiable reliance. (*Avidity Partners, LLC v. State of California* (2013) 221 Cal.App.4th 1180, 1209; *Laks v. Coast Fed. Sav. & Loan Ass'n* (1976) 60 Cal.App.3d 885, 890.) However, the doctrine has no application here as a bare promise to make a gift in the future, in the absence of consideration, is not legally enforceable. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1053.) The TAC fails to allege facts that could be found to be adequate consideration. **Accordingly, the court sustains without leave to amend as to the 3rd cause of action for promissory estoppel.**

4th Cause of Action for Declaratory Relief: Declaratory relief is authorized pursuant to C.C.P. §1060-1062.5. The purpose of declaratory relief is to eliminate uncertainties and controversies that may result in future litigation. (*Marina Development Co. v. County of Los Angeles* (1984) 155 Cal.App.3d 435, 443.) An action for declaratory relief is authorized only when an actual controversy exists. (C.C.P. §1060.) Declaratory relief has two elements a party must satisfy: “ (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to [the party's] rights or obligations.” (*Jolley v. Chase Home Finance*,

LLC (2013) 213 Cal App. 4th 872, 909.) “[T]he remedy is to be used in the interests of preventive justice, to declare rights rather than execute them.” (*Jolley v. Chase Home Finance, LLC* (2013) 213 Cal App. 4th 872, 909.) “It is the general rule that, if a complaint shows the existence of a present controversy between the parties of the nature contemplated by section 1060 of the Code of Civil Procedure, it is improper to sustain a general demurrer on a theory that assumes any declaration would necessarily be unfavorable to plaintiff.” (*Safeway Stores, Inc. v. Royal Indem. Co.* (1971) 21 Cal.App.3d 44, 47.)

However, “[w]hile section 1060's language 'appears to allow for an extremely broad scope of an action for declaratory relief'...In the context of a demurrer, the court will evaluate 'whether the factual allegations of the complaint for declaratory relief reveal that an actual controversy exists between the parties....Section 1060 must be read together with section 1061.’” (*Cummins Corporation v. United States Fidelity & Guaranty Company* (2016) 246 Cal. App. 4th 484, 489.) CCP §1061 provides that “[t]he court may refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

The TAC fails to state facts sufficient to state a declaratory relief cause of action, related to Bates interest in the real property. **Accordingly, the court sustains without leave to amend as to the 4th cause of action for declaratory relief.**

5th Cause of Action for Injunctive Relief: Injunctive relief is an equitable remedy that is anchored to a viable underlying claim, such as a breach of contract. (See *White v. Davis* (2003) 30 Cal.4th 528, 554.) The TAC fails to set forth a viable claim against Linton that could support injunctive relief related to the real property. **Accordingly, the court sustains without leave to amend as to the 5th cause of action for injunctive relief.**

As there are no viable causes of action remaining the matter is dismissed. All future court dates are vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503627	MARTINEZ VS FORD MOTOR COMPANY	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2503627	MARTINEZ VS FORD MOTOR COMPANY	MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES

Tentative Ruling:

Moving party: Plaintiff Reyna Martinez; represented by Knight Law Group, LLP

Responding party: Defendant Ford Motor Company and Sunrise Ford Fontana (Erroneously Sued as Knight Sunrise Fontana LLC); represented by Narain Maclear LLP

Plaintiff Reyna Martinez brings this Song-Beverly action concerning a 2022 Ford F-150 with a transmission defect. The complaint, filed 6/26/25, asserts: (1) breach of express warranty; (2) Civ. Code §1793.2; (3) fraudulent inducement-concealment; and (4) negligent repair.

Plaintiff moves to compel further responses to requests for production, set one (“RFPs”), nos. 16-24, 30, 37, 39, 41, 49-51, 79, 81, 83, 85, 87, 89, 91, 93, and 96-97. Plaintiff seeks \$3,470 in sanctions against Defendant Ford Motor Company and its counsel. Plaintiff also moves to compel further responses to special interrogatories, set one (“SROGs”), nos. 6, 15-17, 27-28, 91-92, 100, and 102, and seeks \$3,337 in sanctions.

Defendant opposes both motions. It argues that it provided code-compliant responses, produced or agreed to produce responsive documents, and its objections were proper. It contends that rather than discussing about the supplemental responses, Plaintiff filed this motion without further meet and confer.

Plaintiff replies that Defendant’s later production does not cure its deficient responses, that Defendant failed to participate meaningfully in the meet-and-confer process, and that Defendant has not substantiated its objections.

Analysis

A party may file a motion compelling further responses to interrogatories or inspection demands if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (CCP §§ 2030.300(a), 2031.310(a).) Unless notice of the motion is given within 45 days of the service of the verified response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).)

Here, the motions are timely. Defendant served verified responses by 4/15/26, and the parties extended the motion deadline to 6/18/26. (Sapra Decl., ¶¶ 5- 6.) Plaintiff filed the motions by that date.

The motions must include declarations showing a reasonable and good faith effort to resolve each issue informally. (*Id.*, §§ 2016.040, 2030.300(b)(1), 2031.310(b)(2).) A single letter followed by a refusal may sometimes satisfy the meet-and-confer requirement. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) However, the court will also consider the time available before the motion deadline, the extent to which the responding party was complicit in the lapse of time, and the prospects of success through meet and confer. (*Id.* at 432-433.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates does not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and “[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.” (*Id.* at 1293 [internal quotation marks omitted].)

Here, Plaintiff sent one meet and confer letter on 5/28/26. (Sapra Decl., ¶ 6, Ex. E.) Defendant agreed to extend the motion deadline, but did not provide substantive response before Plaintiff filed the motions on 6/18/26. (*Id.*, ¶¶ 7-9.) The parties then executed a stipulated protective order on 6/16/26. (Eberle Decl., ¶ 9.) Defendant also made additional productions on 7/31/26 and 8/21/26. (*Id.*, ¶¶ 9-10.) The record here does not show that counsel meaningfully discussed each disputed request, either after entry of the protective order, or the supplemental productions. (See Sapra Decl., ¶¶ 6-9; Eberle Decl., ¶¶ 9-10.)

The court therefore order the parties to meet and confer in ***person, on the telephone or videoconferencing*** within 10 days of this order. If disputes remain, the parties will file a joint separate statement of outstanding issues and identify the documents already produced. The joint separate statement is due 10 court days before the next hearing. Defer the requests for sanctions.

Hearing on the motion is continued to 11/5/2026 at 8:30 a.m. in Dept. 6.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601999	QUILO VS ROSS STORES, INC.	DEMURRER

Tentative Ruling:

Moving party: Defendant Ross Stores, Inc.
Responding party: Plaintiff Jean Quilo

This is an employment dispute. In 2018, Plaintiff Jean Quilo (“Plaintiff”) was hired by Defendant Ross Stores, Inc. (“Ross”) as a warehouse associate at its Moreno Valley location. (Compl. ¶ 7.) In November 2022, Plaintiff was injured on the job while lifting and carrying heavy boxes. (*Id.* at ¶ 8.) Plaintiff sought medical treatment and filed a workers’ compensation claim. (*Id.*) Plaintiff alleges that her performance had been rated “excellent” prior to the accident, and that after a period of convalescence she was released to return to work, ready, willing, and able to perform her duties with or without accommodation. (*Id.* at ¶¶ 8, 14.)

In December 2023, Ross allegedly did not engage in a good faith interactive process but instead determined unilaterally that Plaintiff’s restrictions were permanent and no reasonable accommodation was available. (*Id.* at ¶ 8.) Plaintiff alleges that Ross already had copies of her medical records and reports through its workers’ compensation counsel. (*Id.* at ¶ 9.) On December 21, 2023, Ross terminated Plaintiff. (*Id.* at ¶ 10.) On June 4, 2025, Plaintiff filed an administrative complaint with the California Department of Fair Employment and Housing (“DFEH”), now known as the Civil Rights Division (“CRD”). (*Id.* at ¶ 11.)

On April 1, 2026, within one year of receiving a right to sue letter, Plaintiff filed her Complaint, asserting five causes of action against Ross: (1) disability discrimination in violation of the Fair Employment and Housing Act (“FEHA”); (2) retaliation under FEHA; (3) wrongful termination in violation of public policy; (4) intentional infliction of emotional distress (“IIED”); and (5) Negligent Infliction of Emotional Distress (“NIED”). Plaintiff seeks general, special, and punitive damages, back and front pay, attorneys’ fees, costs, and prejudgment interest.

Ross now demurs to the **third** (wrongful termination in violation of public policy), **fourth** (IIED), and **fifth** (NIED) causes of action as barred on their face by the two-year statute of limitations under CCP § 335.1. According to Ross, Plaintiff was terminated on December 21, 2023, so the limitations period expired December 21, 2025, yet the Complaint was not filed until April 1, 2026, roughly four months late, and pleads no facts supporting tolling. Ross argues that the NIED claim independently fails because NIED is not a standalone tort and the Complaint alleges no duty independent of the employment relationship, merely repackaging the FEHA/termination allegations. Ross further contends that the NIED claim is barred by workers’ compensation exclusivity because the alleged injuries arise out of and in the course of employment. Ross asks the Court to sustain the demurrer without leave to amend.

In opposition, Plaintiff references judicial notice of the WCAB proceedings (Case Number ADJ 18801191) (Pl.’s Opp. at 11:7–11), but did not file a separate Request for Judicial Notice as required by CRC Rule 3.1113(l), and did not submit the underlying WCAB documents. The bare reference in the opposition is insufficient to place the tolling facts before the Court on demurrer.

Plaintiff concedes the basic arithmetic but argues Ross’s calculation ignores equitable tolling during her workers’ compensation proceedings. According to Plaintiff, she filed her Workers’ Compensation Appeals Board (“WCAB”) Application on January 30, 2024 (about 40 days after termination), the WCAB proceeding remained pending roughly fifteen months until the April 28, 2025, Order Approving Compromise and Release, she filed her DFEH/CRD complaint on June 4, 2025, and filed this action on April 1, 2026, well within the tolled period. Plaintiff argues that equitable tolling applies when a plaintiff reasonably and in good faith pursues an alternative remedy, and a workers’ compensation proceeding can toll limitations on related employment claims. She argues that all three tolling elements—timely notice, lack of prejudice, and reasonable good faith conduct—are satisfied because Ross was the employer, participated in the WCAB proceeding, and received Plaintiff’s medical records through its workers’ compensation counsel. On the NIED/workers’ compensation exclusivity point, Plaintiff argues that where an employer’s conduct implicates FEHA and public policy (disability discrimination, failure to accommodate, failure to engage in the interactive process), it falls outside the compensation bargain and is not preempted. At minimum, Plaintiff requests leave to amend to expressly plead the equitable tolling facts.

In reply, Ross argues that Plaintiff cannot rescue her claims through equitable tolling facts as they appear nowhere in the Complaint or the pre-filing meet and confer and are unsupported by any request for judicial notice. Even considering the extra pleading facts, Ross contends Plaintiff cannot satisfy any of the three equitable tolling elements. Ross argues that the workers’ compensation proceeding here was limited to a physical industrial injury and did not put Ross on notice of the wrongful termination, IIED, or NIED theories; that Plaintiff makes no showing of lack of prejudice; and that Plaintiff, represented by counsel throughout, offers no explanation for the roughly eleven months of inactivity between the April 28, 2025 WCAB Order and the April 1, 2026 filing of this action. Ross also argues that Plaintiff’s tolling theory is internally contradictory as to the NIED claim, because if the WCAB proceeding served as an alternative remedy for the same emotional distress injuries, workers’ compensation exclusivity bars the civil claim, and if it did not, tolling fails. Ross urges the Court to sustain the demurrer without leave to amend as to all three causes of action.

Meet and Confer

Ross satisfied its meet and confer requirement via telephone in accordance with CCP § 430.41(a), and filed an appropriate declaration in accordance with CCP § 430.41(a)(3). (*See* Rugo Decl. ¶ 4.)

Analysis

1. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (*Taylor v. City of Los Angeles Dept. of Water & Power* (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (CCP § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (*SKF Farms v. Sup. Ct.* (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (*Id.*) The only issue involved in a demurrer hearing is whether the complaint, as

it stands, unconnected with extraneous matters, states a cause of action. (*Hahn, supra*, 147 Cal.App.4th at 747.)

2. Wrongful Termination in Violation of Public Policy (3rd Cause of Action)

A wrongful termination claim in violation of public policy is subject to two-year limitations period under CCP § 335.1. (CCP § 335.1; *see Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1382 [two-year limitation under CCP § 335.1 applies to common law tort cause of action for wrongful termination in violation of public policy].) A wrongful termination claim accrues at the time of actual termination because the statute of limitations begins to run on the date the employment is actually terminated. (*Romano v. Rockwell Int'l, Inc.* (1996) 14 Cal.4th 479, 484.)

Here, Ross terminated Plaintiff on December 21, 2023. (Compl. ¶ 10.) The Complaint was filed on April 1, 2026. Ross contends that, because Plaintiff did not file her Complaint until April 1, 2026, which is more than four months after the limitations period had run, her wrongful termination claim is time-barred.

Plaintiff responds with an equitable tolling argument based on her workers' compensation proceeding. Plaintiff asserts that she filed her WCAB Application on January 30, 2024, approximately five weeks after her termination, and that the workers' compensation proceeding remained pending until April 28, 2025, when the WCAB issued its Order Approving Compromise and Release. (Pl.'s Opp. 2:13–19, 3:27–4:2, 8:27–28, 11:7–11.)

The equitable tolling doctrine operates to “suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness.” (*McDonald v. Antelope Valley Cmty. College Dist.* (2008) 45 Cal.4th 88, 99.) Equitable tolling reflects the principle that “[w]hen an injured person has several legal remedies and, reasonably and in good faith, pursues one,” the limitations period on the alternative remedy may be tolled. (*Id.* at 100 [internal quotation marks & quotation omitted].) A plaintiff may establish equitable tolling by satisfying three elements: timely notice, lack of prejudice to the defendant, and reasonable and good faith conduct on the part of the plaintiff. (*Id.* at 102.)

The California Supreme Court has held that “the deadline for filing an administrative claim under [FEHA] could be tolled while a plaintiff is voluntarily pursuing alternate remedies.” (*Brome v. Cal. Highway Patrol* (2020) 44 Cal.App.5th 786, 795 [quoting *McDonald v. Antelope Valley Community Coll. Dist.* (2008) 45 Cal.4th 88, 106].) The Court of Appeal in *Brome* held that “the filing of the [workers'] compensation claim could equitably toll the one-year deadline for filing [the] discrimination claim with the [DFEH/CRD].” (*Id.*) “The test for equitable tolling contains no requirement that the legal claims themselves be identical but instead focuses on whether the facts are similar enough that an investigation of one claim will allow collection and preservation of evidence concerning the other.” (*Id.* at 796.)

As Ross correctly argues, the Complaint itself pleads no facts supporting equitable tolling. The January 30, 2024 WCAB Application, Ross's participation in the workers' compensation proceeding, the April 28, 2025, Order Approving Compromise and Release, and the factual overlap between the workers' compensation proceeding and this action are set forth in Plaintiff's Opposition rather than in the Complaint (Pl.'s Opp. 2:13–19, 3:27–4:2, 8:27–28, 11:7–11), and are

not the subject of any request for judicial notice. On the current pleading, the third cause of action is therefore time-barred on its face.

That said, Plaintiff has identified a facially viable equitable tolling theory. If the limitations clock was suspended beginning January 30, 2024 and resumed on April 28, 2025, the limitations period would have been suspended for approximately 454 days. Approximately 40 days elapsed between Plaintiff's termination and the January 30, 2024 filing of her WCAB Application, leaving approximately 690 days remaining in the statutory period (730 minus the 40 days that expired before the WCAB Application was filed). The resulting limitations period would extend beyond the April 1, 2026 filing date. The *Brome* court concluded that even an eleven-month period following resolution of a workers' compensation claim did not establish lack of good faith as a matter of law, and Plaintiff here proceeded more promptly than the *Brome* plaintiff by filing her DFEH/CRD complaint approximately five weeks after the WCAB order. (*Brome, supra*, 44 Cal.App.5th at 798.) Whether equitable tolling ultimately applies, including whether the scope of the workers' compensation proceeding sufficed to give Ross timely notice of the wrongful termination theory, presents factual questions not properly resolved on demurrer. In light of the strong policy favoring resolution on the merits, Plaintiff is given the opportunity to plead her tolling facts.

The demurrer to the third cause of action therefore be **SUSTAINED WITH LEAVE TO AMEND**.

3. Fourth Cause of Action: Intentional Infliction of Emotional Distress

An IIED claim is subject to a two-year statute of limitations. (CCP § 335.1; *see Wassmann v. S. Orange Cnty. Cmty. Coll. Dist.* (2018) 24 Cal.App.5th 825, 852–53.) An IIED claim accrues, and the statute of limitations begins to run, once the plaintiff suffers severe emotional distress as a result of the defendant's conduct. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 889 [citing *Murphy v. Allstate Ins.* (1978) 83 Cal.App.3d 38, 50–51].)

Plaintiff alleges that her employment with Ross ended on December 21, 2023. (Compl. ¶ 10.) She pleads no facts suggesting any alleged wrongful or outrageous conduct by Ross resulting in claimed severe emotional distress occurred after her termination date. Under the basic limitations rule, the IIED claim would be time-barred.

The same equitable tolling analysis applicable to the wrongful termination claim applies equally to the IIED claim. The Complaint alleges not merely an isolated personnel decision but a course of conduct involving Plaintiff's disability, medical restrictions, failure to accommodate, failure to engage in the interactive process, and ultimate termination. (*Id.* at ¶¶ 8, 10, 13, 14.) This course of conduct was known to Ross through the workers' compensation proceeding. (*Id.* at ¶¶ 9, 13.) If the workers' compensation proceeding tolled the limitations period from January 30, 2024 through April 28, 2025, the April 1, 2026 filing would be timely.

As with the third cause of action, however, the tolling facts appear only in the Opposition, not in the Complaint, and the pleading as it stands does not allege the WCAB Application, its pendency, the Order Approving Compromise and Release, or the factual overlap sufficient to trigger equitable tolling. Because a demurrer tests only the face of the pleading, the IIED claim as pleaded is time-barred.

The demurrer to the fourth cause of action is therefore **SUSTAINED WITH LEAVE TO AMEND**.

4. Fifth Cause of Action: Negligent Infliction of Emotional Distress

a. Statute of Limitations

NIED claims are subject to a two-year statute of limitations. (CCP § 335.1.) Ross contends that the fifth cause of action for NIED is time-barred. For the same reasons set forth above with respect to the third and fourth causes of action, the Complaint on its face pleads no equitable tolling facts, and the NIED claim as pleaded is time-barred. The demurrer therefore is **SUSTAINED WITH LEAVE TO AMEND** on statute of limitations grounds, in addition to the further grounds set forth below.

b. Failure to Plead an Independent Duty and Workers' Compensation Exclusivity

Ross next argues that California does not recognize NIED as a standalone tort and that Plaintiff was therefore required to plead facts establishing a duty of care owed by Ross separate and apart from the obligations arising out of the employment relationship or any other statutory source. Ross contends that the Complaint simply reincorporates the same employment related allegations underlying the FEHA claims—the termination and the resulting emotional distress—without ever identifying a distinct factual or legal basis for the NIED claim. Because the alleged injuries arise from an employment decision, Ross argues that the claim falls within the Workers' Compensation Act's exclusivity provisions, which apply to NIED claims.

Plaintiff does not affirmatively identify an independent duty. She acknowledges that NIED is not an independent tort but is analyzed under ordinary negligence principles, and she asks only that, to the extent the Court finds she has not sufficiently alleged duty, breach, causation, or damages, she be permitted to amend. On exclusivity, Plaintiff invokes the public policy carve-out, arguing that where an employer's conduct implicates substantial public policy interests, those interests fall outside the compensation bargain, and that if the Complaint states viable FEHA claims the exclusivity doctrine presents no bar.

Under the Workers' Compensation Act, workers' compensation is generally the exclusive remedy for injuries, including emotional distress injuries, sustained by an employee in the course of employment, and that exclusivity extends to NIED claims arising from employment decisions such as termination. (Lab. Code, §§ 3600(a), 3602(a); *Singh v. Southland Stone* (2010) 186 Cal.App.4th 338, 365; *Robomatic, Inc. v. Vetco Offshore* (1990) 225 Cal.App.3d 270, 272.)

Here, Plaintiff's NIED cause of action, as pleaded, fails to identify any duty independent of the employment relationship. The claim incorporates by reference all preceding allegations and rests on the theory that Ross knew of Plaintiff's medical condition and terminated her anyway. (Compl. ¶¶ 34–36.) That describes conduct governed by the employment relationship and by FEHA, not a distinct duty of care. Plaintiff's Opposition does not point to any allegation supplying an independent duty.

On exclusivity, the authorities recognizing an exception for discrimination based emotional distress claims have generally involved intentional conduct implicating fundamental public policy, not negligence, and Plaintiff cites no authority suggesting that a negligence based emotional

distress claim arising from ordinary employment decisions survives workers' compensation exclusivity.

The demurrer therefore is **SUSTAINED WITH LEAVE TO AMEND** on the independent duty and workers' compensation exclusivity grounds.

c. Futility of Amendment

Ross argues that leave to amend should be denied as futile because Plaintiff's tolling theory and her NIED claim are mutually exclusive: her equitable tolling argument assumes the workers' compensation proceeding was an alternative remedy for the same emotional distress injuries underlying her NIED claim. If that assumption is correct, exclusivity bars the claim, and if it is not, the workers' compensation proceeding was not an alternative remedy and cannot support equitable tolling.

The argument has force, but at the pleading stage the Court cannot conclude that no set of amended allegations could reconcile the two theories. Plaintiff may be able to plead facts distinguishing the emotional distress injuries she pursued in the WCAB proceeding from those underlying her NIED claim, or facts placing Ross's conduct within the public policy carve-out to workers' compensation exclusivity. Whether she can do so should not be resolved on demurrer.

Accordingly, the demurrer to the fifth cause of action is **SUSTAINED WITH LEAVE TO AMEND** on statute of limitations, independent-duty/standalone-tort, and workers' compensation exclusivity grounds.

Summary:

SUSTAIN Defendant's Demurrer as to the Third Cause of Action for Wrongful Termination in Violation of Public Policy, the Fourth Cause of Action for Intentional Infliction of Emotional Distress, and the Fifth Cause of Action for Negligent Infliction of Emotional Distress **with 21 days leave to amend.**